

Court No. - 40

Case :- WRIT - C No. - 21087 of 2023

Petitioner :- Tilak Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Kalpana Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard Ms. Kalpana Singh, learned counsel for the petitioner; learned Standing Counsel for State respondents and Sri Baleshwar Chaturvedi, learned counsel for respondent no.4.

2. Present writ petition has been preferred for a direction to respondent authority to permit the petitioner for depositing remaining installments of electricity bill as per the rebate scheme.

3. Learned counsel for the petitioner states that in view of Section 56 (2) of Electricity Act, 2003 no sum due from any consumer, under this section shall be recoverable after the period of two years from the date when such sum became first due unless such sum has been shown continuously as recoverable as arrears of charges for electricity supplied and the licensee shall not cut off the supply of the electricity. He submits that in a most arbitrary manner the installments were fixed without taking recourse of the said provisions.

4. On the request of Sri Baleshwar Chaturvedi, learned counsel, learned counsel for electricity department, put up this matter as fresh on 12.7.2023 for enabling him to seek instructions in the matter.

5. Put up this matter as fresh on 12.07.2023.

Order Date :- 4.7.2023

S.P.

Court No. - 40

Case :- WRIT - C No. - 21087 of 2023

Petitioner :- Tilak Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Kalpana Singh

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. Heard learned counsel for the petitioner; Sri Ambrish Shukla, learned Additional Chief Standing Counsel for the State-respondent nos. 1 to 3 and Sri Baleshwar Chaturvedi, learned counsel for the contesting-respondent no. 4.
2. By means of the present writ petition, petitioner is praying for a mandamus commanding the concerned respondent authority to permit the petitioner for depositing remained installments of electric bill as per the rebate scheme, during the pendency of this writ petition.
3. At the very outset Sri Baleshwar Chaturvedi raised an objection that the matter relates to deposit of remaining installments of electricity bill as per the rebate scheme. For redressal of his grievance, the petitioner has got efficacious alternative remedy under Clause 6.14 of the Electricity Supply Code 2005 and as such the present writ petition is liable to be dismissed on the ground of statutory alternative remedy.
4. Once an objection is being raised, we have proceeded to examine the record in question and we are of the considered opinion once the efficacious alternative remedy is available to the petitioner, there is no reason or occasion to bypass the statutory forum and the writ petition is liable to be dismissed on the ground of statutory alternative remedy.
5. In the facts and circumstances, no useful purpose would be served in keeping the writ petition pending and with the consent of the parties, the writ petition is disposed of finally with the direction that in case any such application is being preferred by the petitioner within two weeks from today before the fourth respondent, definitely, the same would be looked into, examined and redressed strictly in accordance with law within six weeks thereafter.

Order Date :- 12.7.2023

Vikram